

26STCV02924 26STCV02924

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Department: 310

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Case Number: 26STCV02924 Hearing Date: June 26, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: June 26, 2026

Case Name: Arguello v. Animaker, Inc., et al.

Case No.: 26STCV02924

Matter: Motion to Transfer Venue

Moving Party: Defendant Animaker, Inc.

Responding Party: Plaintiff Shelby Arguello

Notice: OK

Ruling: The Motion is denied.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an employment action.

Defendant Animaker, Inc. seeks to transfer venue to the County of Fresno.

The burden is on the moving party to establish whatever facts are needed to justify transfer. Normally, this requires declarations containing admissible evidence, but the court may also consider facts alleged in the moving party's verified complaint if uncontroverted by opposing affidavits. (*Mission Imports, Inc. v. Superior Ct.* (1982) 31 Cal.3d 921, 929.)

Code Civ. Proc. § 397 provides in relevant part, "The court may, on motion, change the place of trial in the following cases: (a) When the court designated in the complaint is not the proper court. . . ."

Defendant argues that Plaintiff was fundamentally a Fresno resident during her brief tenure with Animaker, relying on her initial onboarding documents from October 2024, historical court documents from Fresno County dating back to 2014, and a concurrent lawsuit filed by Plaintiff against another employer (PopMenu, Inc.) in Fresno County. Defendant contends that allegations of Fresno residence in the PopMenu complaint constitute binding "judicial admissions" that preclude venue in Los Angeles. The Court disagrees.

As an initial matter, Defendant incorrectly applies the general tort venue provision of Code of Civil Procedure section 395(a). Because this action features statutory FEHA claims, it is governed exclusively by the special venue provisions of Government Code section 12965(c)(3). It is well-established that the FEHA venue statute controls the entire action—including non-FEHA claims—when they arise from the same matrix of operative facts (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 486-487).

Under Government Code section 12965(c)(3), venue is proper in any county: (1) where the unlawful practice is alleged to have been committed; (2) where relevant employment records are maintained; or (3) where the aggrieved person would have worked but for the alleged unlawful practice. The moving defendant bears the burden of demonstrating that the plaintiff's choice of venue is improper under all three of these disjunctive provisions (*Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836).

Plaintiff has produced competent documentary evidence demonstrating that while she initially lived in Fresno when hired in October 2024, she subsequently executed an 18-month lease and relocated to 825 S. Hill Street in Los Angeles County on November 16, 2024. Her move-out records indicate her Fresno tenancy was fully terminated on December 3, 2024.

Crucially, the "injury" in an employment context occurs where the employee is situated when the adverse employment action takes place. The evidence establishes that between November 16, 2024, and January 23, 2025, Plaintiff lived in Los Angeles and performed 100% of her remote job duties from her Los Angeles apartment. Her requests for accommodation were generated from Los Angeles, and Defendant's termination of her employment via Zoom occurred while Plaintiff was physically residing in Los Angeles County.

The fact that Plaintiff relocated back to Fresno in February/March 2025 after losing her job and experiencing a domestic relationship split—resulting in her being a Fresno resident when PopMenu subsequently terminated her on March 19, 2025—does not invalidate her physical residence in Los Angeles at the time this Defendant terminated her.

Because the alleged unlawful practices were committed while Plaintiff resided and worked in Los Angeles County, and because she would have continued to work from Los Angeles but for the termination, Los Angeles County is a proper venue under Government Code section 12965(c)(3). Defendant has failed to satisfy its burden to overcome the presumption of correctness given to Plaintiff's venue selection.

Therefore, the Motion is denied.

Moving party to give notice.